Rajveer Singh And Others vs State Of U.P. & Ors. on 9 August, 2010

Bench: Amar Saran, Surendra Singh

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Court No. - 46

Case :- CRIMINAL MISC. WRIT PETITION No. - 14426 of 2010

Petitioner :- Rajveer Singh And Others
Respondent :- State Of U.P. & Ors.
Petitioner Counsel :- S.K. Tyagi
Respondent Counsel :- Govt. Advocate

Hon'ble Amar Saran,J.
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Hon'ble Surendra Singh,J.

Learned counsel for the petitioners is permitted to implead husband as respondent No. 5 in the petition.

Heard learned counsel for the petitioners and learned Additional Government Advocate.

Admit.

It is contended that there was a matrimonial dispute between the parties and because of that a criminal case has been lodged at case crime No. 649 of 2010, under sections 498-A/323/504/506 IPC and sections 18, 19 and 20 of Domestic Violence Act, P.S. Kavi Nagar, district Ghaziabad.

In view of the aforesaid, we are of the view that an attempt should be made for reconciliation between the parties.

The matter is, therefore, with the consent of the petitioners, referred to the Mediation Centre, Allahabad High Court. The petitioners should deposit Rs. 10,000/- within two weeks from today in the account head of the Registrar General, Mediation and Conciliation Centre, High Court, Allahabad, out of which Rs. 7000/- will be given to opposite party No. 4 and Rs. 3000/- will go to the Mediation Centre.

The Registry shall send a notice through the Chief Judicial Magistrate concerned within a week fixing 7.9.2010 for appearance of the wife, opposite party No. 4, before the Mediation Centre at Allahabad High Court and it shall be mentioned in the notice that Rs. 7,000/- shall be paid to her when she appears before the Centre and the due payment shall be made on her appearance. On that date, and on any future dates as directed by the Centre, the husband-respondent No. 5 and the wife aforesaid will appear before the Centre.

The Registry will send information of this order to the Mediation Centre within a week.

The Centre shall submit a report to this Court within one month from the date of appearance of the parties before it.

Till the next date of listing, the arrest of the petitioners in the aforesaid case shall remain stayed, provided the petitioners submit the receipt of the aforesaid deposit before the concerned Court and co-operate in the mediation proceedings.

In case of any default by the husband in making the appearance before the Mediation Centre on the dates fixed or making the aforesaid payments as directed above, the relief granted by this order shall not apply.

List this case on 8.10.2010 before the appropriate Bench along with the report of the Mediation Centre.

In case there is any default by the petitioners and respondent No. 5 as above, the Mediation Centre should immediately communicate this fact to the office and office will list the case within a week before the Bench concerned, which may pass order for vacation of the stay.

On the next date, the case will not be treated as tied up to this Bench and shall be listed before the appropriate Bench.

Copy of the order will not be issued unless steps are taken.

Order Date :- 9.8.2010 Ishrat